



CIVILIAN COMPLAINT REVIEW BOARD

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Administrative Prosecution Unit

2nd Quarter 2024 Report

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ADMINISTRATIVE PROSECUTION UNIT BACKGROUND

When the Board substantiates a misconduct allegation(s) and recommends Charges and Specifications, in most instances the case is prosecuted by the CCRB's Administrative Prosecution Unit (APU) pursuant to a Memorandum of Understanding (MOU) between the CCRB and the NYPD.

The APU prosecutes cases before the NYPD Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT). The member of service (MOS) can accept a plea offer in lieu of a trial. If the MOS goes to trial and is found guilty, the NYPD trial commissioner will recommend a penalty. The Police Commissioner may accept, reject, or modify any plea agreement, trial verdict, or penalty recommendation.

The APU treats each officer against whom an allegation is substantiated as a separate case. A single CCRB complaint may generate more than one APU case depending on the number of officers against whom the Board recommends Charges and Specifications.

INTRODUCTION

This report will address the following matters: (i) trial verdicts issued by an Assistant Deputy Commissioner of Trials ("ADCT"); (ii) the treatment of Administrative Prosecution Unit ("APU") pleas by the Police Commissioner ("PC"); (iii) the retention of cases under Provision Two of the April 2, 2012, Memorandum of Understanding ("MOU"); (iv) cases administratively closed by the Police Commissioner; (v) cases closed due to the statute of limitations ("SOL"); (vi) the size of the APU's docket; (vii) the time to serve Charges and Specifications on Respondents; and (viii) the discipline concurrence rate.

The report contains information concerning the following case closures in the second quarter of 2024: seventeen (17) trial verdicts, forty-four (44) pleas, twenty-eight (28) retained cases, ten (10) PC administratively closed cases, and three (3) APU administratively closed cases. Finally, it includes information regarding the discipline and concurrence rates for the quarter which stand at 69% and 44% respectively.

SECTION I: TRIALS

At the conclusion of an administrative trial, the presiding ADCT renders a finding of guilty or not guilty on each of the Charges and Specifications against the member(s) of service ("MOS").¹ For guilty verdicts, the ADCT recommends a penalty for each member of service involved in the case and the Police Commissioner either approves, modifies, or reverses the verdict and recommended penalty.² There is no penalty recommendation for not guilty verdicts. In the second quarter of 2024, the verdicts for seventeen (17) APU trials were finalized. The verdicts can be found below.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
201904581 Read Closing Report Here	PO Brendan Thompson	1. Force - fired his gun at the Victim. 2. Force - pointed his gun at the Victim. 3. Used a non-lethal restraining device on the Victim. 4. Abuse of Authority - did not obtain medical treatment for the Victim. 5. Abuse of Authority - entered the Victim's home.	Termination	The DCT dismissed all the charges. The Police Commissioner approved the dismissal. Read Final Documents Here
201904581 Read Closing Report Here	PO Herbert Davis	1. Abuse of Authority - did not obtain medical treatment for the Victim. 2. Abuse of Authority - entered the Victim's home.	Termination	The DCT dismissed all the charges. The Police Commissioner approved the dismissal. Read Final Documents Here

¹ The APU treats each officer against whom an allegation is substantiated as a separate "case." As such, all APU data discussed in this report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word "case" should be interpreted as "case against a single officer."

² As the final arbiter of discipline, the Police Commissioner can modify the ADCT penalty and/or reverse a verdict.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
201906680 Read Closing Report Here	LT Francy Monestime	1. Force - used physical force against the Victim. 2. Abuse of Authority - arrested the Victim. 3. Abuse of Authority - stopped the Victim. 4. Untruthful Statement - provided a false official statement to the CCRB.	Termination	The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charges. The ADCT recommended fifteen (15) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here
201911107 Read Closing Report Here	PO Amado Vargas	1. Force - used physical force against the Victim. 2. Untruthful Statement - provided a false official statement to the CCRB.	Ten (10) days' suspension	The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202000571 Read Closing Report Here	DT3 Joshua Navarro	1. Force - used physical force against the Victim. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - stopped the Victim.	Ten (10) days' vacation forfeiture	The ADCT rendered a guilty verdict on all charges and recommended ten (10) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202006753 Read Closing Report Here	PO Triston Trunk	1. Force - used a chokehold against the Victim. 2. Force - used physical force against the Victim.	Termination	The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202100385 Read Closing Report Here	PO Matthew McCurry	1. Force - used physical force against the Victim. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - stopped the Victim.	Ten (10) days' vacation forfeiture	The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202100558 Read Closing Report Here	DT3 Joshua Navarro	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - stopped the Victim.	Three (3) days' vacation forfeiture	The ADCT rendered a guilty verdict on three (3) charges and a not guilty verdict on the remaining charge. The ADCT recommended nine (9) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202100558 Read Closing Report Here	DT3 Nicki Canady	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - stopped the Victim.	Three (3) days' vacation forfeiture	The ADCT rendered a guilty verdict on two (2) charges and a not guilty verdict on the remaining charges. The ADCT recommended three (3) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here
202100859 Read Closing Report Here	SGT Ronald Chiriboga	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - searched the Victim. 3. Abuse of Authority - at the 79th Precinct Stationhouse searched the vehicle in which the Victim was an occupant. 4. Abuse of Authority - at the 79th Precinct strip-searched the Victim.	One (1) year dismissal probation	The ADCT rendered a guilty verdict on two (2) charges and a not guilty verdict on the remaining charges. The ADCT recommended three (3) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202103206 Read Closing Report Here	PO Sergio Martins	1. Force - used physical force against the Victim. 2. Untruthful Statement - provided a false official statement to the CCRB.	Twenty (20) days' vacation forfeiture	The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charge. The ADCT recommended twenty (20) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here
202103678 Closing Report Will be Available Upon Closure of all related APU Cases	DT3 Joshua Navarro	1. Force - pointed his gun at the Victim. 2. Abuse of Authority - failed to provide the Victim with a business card. 3. Abuse of Authority - frisked the Victim. 4. Abuse of Authority - searched the Victim. 5. Abuse of Authority - stopped the Victim. 6. Abuse of Authority - threatened the Victim with the use of force.	Twenty-three (23) days' vacation forfeiture	The ADCT rendered a guilty verdict on two (2) charges and a not guilty verdict on the remaining charges. The ADCT recommended three (3) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202105105 Read Closing Report Here	PO James Burns	1. Force - pointed his gun at the Victim.	Ten (10) days' vacation forfeiture	The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202105227 Read Closing Report Here	SGT Michael Farrell	1. Abuse of Authority - at the 73rd Precinct stationhouse, strip-searched Victim 1.	One (1) year dismissal probation	The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202106162 Closing Report Will be Available Upon Closure of all related APU Cases	PO Jhovanny Ysabel	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language – made remarks to the Victim based upon the gender of the Victim.	Ten (10) days' vacation forfeiture	The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charges. The ADCT recommended five (5) days' vacation forfeiture and Formalized training. The Police Commissioner approved the guilty verdict and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202106429 Read Closing Report Here	PO Patrick Gourlay	1. Abuse of Authority - searched the vehicle in which Victim 1 and Victim 2 were occupants. 2. Abuse of Authority - threatened Victim 1 with the use of force.	Thirty-five (35) days' vacation forfeiture	The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202106429 Read Closing Report Here	PO Camil Jezewski	1. Abuse of Authority - searched the vehicle in which Victim 1 and Victim 2 were occupants.	Command Discipline A and Formalized Training	The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here

SECTION II: PLEAS

In lieu of a trial, the MOS can reach a plea agreement with the APU. This agreement must be approved by both the ADCT and the Police Commissioner. The APU uses several factors to determine plea recommendations, including, but not limited to, MOS length of service, MOS rank, MOS disciplinary history, the facts of the case, the strength of the case, vulnerability of the victim, the extent of any injury, the number of complainants, precedent from cases involving analogous charges, and the delineated penalty categories from the New York City Police Department's ("NYPD") Disciplinary Matrix. In the second quarter of 2024, the APU finalized forty-four (44) plea agreements.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
201904872 Read Closing Report Here	PO Jason Goodman	1. Abuse of Authority - arrested the Victim.	The officer pled guilty and accepted five (5) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to ten (10) days' vacation forfeiture. Read Final Documents Here
201909568 Read Closing Report Here	SGT Denis Gamez	1. Force - used a taser against Victim 1. 2. Discourtesy - spoke discourteously to Victim 2. 3. Offensive Language - made remarks to Victim 2 based upon the gender of Victim 2.	The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
201910281 Read Closing Report Here	PO Matthew Giannella	1. Abuse of Authority - threatened Victim 1 with the use of force. 2. Abuse of Authority - stopped individuals. 3. Abuse of Authority - stopped Victim 2.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
201910389 Closing Report Will be Available Upon Closure of all related APU Cases	DT3 Kevin Earl	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - stopped the Victim. 3. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline A with one (1) day vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
201910390 Read Closing Report Here	LT Brian Schulman	1. Abuse of Authority - seized the Victim's property.	The officer pled guilty and accepted Training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
201911001 Read Closing Report Here	SGT Yancy Blowe	1. Force - used physical force against Victim 1. 2. Force - used physical force against Victim 2. 3. Abuse of Authority - damaged Victim 3's property. 4. Abuse of Authority - entered Victim 3's home.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202000545 Read Closing Report Here	SGT Kevin Weber	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - questioned the Victim. 3. Abuse of Authority - searched the vehicle in which the Victim was an occupant.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202001754 Read Closing Report Here	DT3 Mike Suarez	1. Force - used physical force against the Victim. 2. Abuse of Authority - strip-searched the Victim.	The officer pled guilty and accepted fifteen (15) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202001754 Read Closing Report Here	PO Matthew Miret	1. Abuse of Authority - strip-searched the Victim.	The officer pled guilty and accepted fifteen (15) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202002039 Read Closing Report Here	PO James Sullivan	1. Abuse of Authority - interfered with Victim 1's use of a recording device. 2. Discourtesy - spoke discourteously to Victim 2. 3. Discourtesy - spoke discourteously to Victim 1.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline A with one (1) day vacation forfeiture. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202002178 Read Closing Report Here	LT Charles Senat	1. Force - restricted the Victim's breathing. 2. Force - used a chokehold against the Victim.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202003797 Read Closing Report Here	PO Johnny Marquez	1. Force - struck an individual with a baton. 2. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202004203 Read Closing Report Here	SGT Ray Soriano	1. Force - struck Victim 1 with a baton.	The officer pled guilty and accepted ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202004203 Read Closing Report Here	SGT Elliot Zinstein	1. Force - struck an individual with a baton. 2. Force - struck Victim 2 with a baton. 3. Force - used physical force against an individual.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202004301 Read Closing Report Here	SGT Steven Counihan	1. Force - struck individuals with a baton. 2. Abuse of Authority - damaged an individual's property.	The officer pled guilty and accepted fifteen (15) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline B with ten (10) days' vacation forfeiture. Read Final Documents Here
202005786 Read Closing Report Here	SGT Gary Leite	1. Abuse of Authority - frisked Victim 1. 2. Abuse of Authority - searched the vehicle in which Victim 1 and Victim 2 were occupants. 3. Abuse of Authority - stopped Victim 1. 4. Abuse of Authority - stopped Victim 2.	The officer pled guilty and accepted Command Discipline B with nine (9) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202006197 Read Closing Report Here	PO Matthew Miret	1. Force - used pepper spray against Victim 1, Victim 2, Victim 3, and individuals. 2. Abuse of Authority - threatened individuals with the use of force.	Shared penalty with CCRB Case No. 202001754

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202006219 Read Closing Report Here	SGT Frank Bauers	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language - made remarks to the Victim based upon race.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline A with five (5) days' vacation forfeiture. Read Final Documents Here
202100719 Read Closing Report Here	SGT Samuel Hui	1. Force - used physical force against the Victim. 2. Abuse of Authority - searched the Victim. 3. Abuse of Authority - stopped the Victim. 4. Discourtesy - discourteously to the Victim.	The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202101825 Read Closing Report Here	SGT Sean Doheny	1. Force - used physical force against the Victim. 2. Discourtesy - spoke discourteously to the Victim. 3. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202103568 Read Closing Report Here	PO Justin Senese	1. Abuse of Authority - failed to provide an individual with a business card. 2. Abuse of Authority - frisked an individual. 3. Abuse of Authority - questioned an individual. 4. Abuse of Authority - searched an individual.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202104899 Read Closing Report Here	PO John Espinal	1. Abuse of Authority - searched the vehicle in which Victim 1, Victim 2, and Victim 3 were occupants. 2. Abuse of Authority - threatened to arrest Victim 1.	The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202105227 Read Closing Report Here	SGT Samuel Hui	1. Abuse of Authority - frisked Victim 2. 2. Abuse of Authority - stopped Victim 2.	The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202105543 Read Closing Report Here	PO Malcolm Liu	1. Abuse of Authority - searched the Victim's recording device. 2. Abuse of Authority - threatened to remove the Victim to the hospital.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202105828 Closing Report Will be Available Upon Closure of all related APU Cases	DT3 Vincent Crisci	1. Abuse of Authority – detained Victim 1. 2. Abuse of Authority - stopped individuals. 3. Abuse of Authority - stopped Victim 2. 4. Abuse of Authority - threatened to arrest Victim 1.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202105894 Read Closing Report Here	PO John Laird	1. Abuse of Authority - threatened to remove the Victim to the hospital. 2. Discourtesy - spoke discourteously to the Victim. 3. Offensive Language - made offensive remarks to the Victim based upon perceived mental health status.	The officer pled guilty and accepted eleven (11) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline A with ten (5) days' vacation forfeiture Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202105928 Read Closing Report Here	PO Edward Wetherell	1. Abuse of Authority - damaged the Victim's property. 2. Abuse of Authority - interfered with the Victim's use of a recording device. 3. Abuse of Authority - refused to provide his name to the Victim. 4. Discourtesy - acted discourteously toward the Victim. 5. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline A with one (1) day vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202105963 Read Closing Report Here	DT3 Lee Wittek	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - searched the Victim 4. Abuse of Authority - stopped the Victim.	The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202106152 Read Closing Report Here	DT3 Anthony Sciortino	1. Force - pointed his gun at the Victim. 2. Abuse of Authority - entered the Victim's home. 3. Abuse of Authority - searched the Victim's home.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202106152 Read Closing Report Here	DT1 James Malpeso	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - searched the Victim's home.	The officer pled guilty and accepted Command Discipline B with eight (8) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202106152 Read Closing Report Here	LT Michael Dalbero	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - searched the Victim's home.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202106232 Read Closing Report Here	SGT Juan Burgos	1. Discourtesy - acted discourteously toward the Victim. 2. Discourtesy - acted discourteously toward the Victim. 3. Offensive Language - made remarks to the Victim based upon the physical disability of the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202107240 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Adan Suazorodas	1. Abuse of Authority - inappropriately touched the Victim. 2. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202107483 Read Closing Report Here	PO Edwin Reyes -Estrada	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - forcibly removed the Victim to the hospital.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202107483 Read Closing Report Here	PO Yanardy Polanco	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - forcibly removed the Victim to the hospital.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202107869 Read Closing Report Here	PO Luis Sandres	1. Abuse of Authority - threatened Victim 1 with the use of force. 2. Abuse of Authority - searched the vehicle in which Victim 1 and Victim 2 were occupants.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202200362 Closing Report Will be Available Upon Closure of all related APU Cases	PO Gregory Danca	1. Abuse of Authority - abused authority in relation to the Victim. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - stopped the Victim. 4. Abuse of Authority - took (a) photograph(s)/recording(s) of the Victim.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Training. Read Final Documents Here
202200784 Read Closing Report Here	LT Francisco Hernandez	1. Discourtesy - spoke discourteously to the Victim. 2. Untruthful Statement - provided a misleading official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202203603 Read Closing Report Here	DT3 Luke Speranza	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - searched the Victim's recording device.	The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202203719 Read Closing Report Here	PO Alexander Caballery	1. Abuse of Authority - detained the Victim. 2. Abuse of Authority - searched the vehicle in which the Victim was an occupant.	The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202203719 Read Closing Report Here	PO Anthony Carolei	1. Abuse of Authority - detained the Victim. 2. Abuse of Authority - searched the vehicle in which the Victim was an occupant	The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202204339 Read Closing Report Here	PO Charles Hillery	1. Force - used physical force against the Victim. 2. Abuse of Authority - damaged the Victim's property. 3. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202204599 Read Closing Report Here	DT3 John Eller	1. Abuse of Authority - threatened to issue summons to the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202205991 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Dominic Darrigo	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - searched the Victim. 3. Abuse of Authority - threatened the Victim with the use of force. 4. Abuse of Authority - threatened to arrest the Victim. 5. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted eighteen (18) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

SECTION III: RETAINED CASES

The Police Commissioner can retain a case, which means that the case is removed from the APU, in accordance with Provision Two of the MOU,³ which states that:

in those limited circumstances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served.

After a case is retained, the Police Commissioner can decide whether or not to impose discipline on an officer. In the second quarter of 2024, the Police Commissioner retained twenty-eight (28) cases.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202103467 Read Closing Report Here	PO Mario Valencia	1. Untruthful Statement - provided a misleading official statement to the CCRB.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202200672 Read Closing Report Here	PO Richard Defrancesco	1. Abuse of Authority - threatened to arrest the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with five (5) days' vacation forfeiture. Read Final Documents Here
202202061 Read Closing Report Here	SGT David Yan	1. Force - used physical force against the Victim	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202203095 Read Closing Report Here	PO Francisco Cardona	1. Force - used physical force against the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here

³ https://www.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202206614 Read Closing Report Here	SGT Marisol Abreu	1. The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with five (5) days’ vacation forfeiture.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B. Read Final Documents Here
202206638 Read Closing Report Here	PO Dennis Hoe	1. Abuse of Authority - issued an unlawful summons to the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202207257 Closing Report Will be Available Upon Closure of all related APU Cases	LT Ana Rivera	1. Abuse of Authority - did not process the Victim’s complaint regarding an officer. 2. Abuse of Authority - forcibly removed the Victim to the hospital.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B. Read Final Documents Here
202207290 Read Closing Report Here	PO Joah Pagan	1. Abuse of Authority - provided a false official statement against the Victim during a virtual court hearing.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202207350 Read Closing Report Here	PO Edward Lam	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - searched the Victim. 3. Discourtesy - spoke discourteously to the Victim. 4. Offensive Language - made offensive remarks to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202207517 Closing Report Will be Available Upon Closure of all related APU Cases	PO Albulena Kukaj	1. Abuse of Authority - attempted to forcibly remove the Victim to the hospital. 2. Abuse of Authority - took law enforcement action based on actual or perceived disability.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202207643 Read Closing Report Here	PO Christian Prate	1. Abuse of Authority - failed to obtain language interpretation services for the Victim. 2. Abuse of Authority - improperly used his body-worn camera. 3. Abuse of Authority - failure to act was based on actual or perceived national origin	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202207643 Read Closing Report Here	PO Dashawn Fogah	1. Abuse of Authority - failed to obtain language interpretation services for the Victim. 2. Abuse of Authority - improperly used his body-worn camera. 3. Abuse of Authority - failure to act was based on actual or perceived national origin.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202207963 Read Closing Report Here	SGT Michael Venditti	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language - spoke offensively regarding the Victim's perceived disability.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202207967 Read Closing Report Here	LT William Rivera	1. Abuse of Authority – stopped the Victim. 2. Abuse of Authority - threatened to arrest the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202208146 Read Closing Report Here	SGT Joseph Power	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - improperly used his body-worn camera. 3. Discourtesy - acted discourteously toward the Victim. 4. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B. Read Final Documents Here
202208148 Read Closing Report Here	SGT Eric Johnson	1. Force - used a non-lethal restraining device on the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202208148 Read Closing Report Here	PO Mario Avenoso	1. Force - restricted the Victim's breathing. 2. Force - used a chokehold against the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202208201 Read Closing Report Here	PO Ryan Hennessy	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - improperly used his body-worn camera. 4. Abuse of Authority - stopped the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202208392 Closing Report Will be Available Upon Closure of all related APU Cases	PO Robert Kullak	1. Force - used physical force against the Victim. 2. Discourtesy - acted discourteously toward the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202208452 Read Closing Report Here	SGT John Bonhomme	1. Abuse of Authority - searched the Victim. 2. Abuse of Authority - stopped the Victim. 3. Abuse of Authority - took law enforcement action based upon actual or perceived race	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202208462 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Rafael Pimentel	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - improperly used his body-worn camera. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - searched the vehicle in which the Victim was an occupant.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202208508 Read Closing Report Here	PO Jean Polonia	1. Abuse of Authority - ejected the Victim from the transit system. 2. Abuse of Authority - improperly used his body-worn camera.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202208508 Read Closing Report Here	PO Victor Roopnarine	3. Abuse of Authority - ejected the Victim from the transit system. 4. Abuse of Authority - improperly used his body-worn camera.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202208707 Read Closing Report Here	PO Jose Fuentes	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - searched the Victim's home. 3. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202208707 Read Closing Report Here	PO Jerson Guaman-Garcia	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - searched the Victim's home.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202208801 Read Closing Report Here	PO Jeffrey Almanzar	1. Force - used physical force against the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B. Read Final Documents Here
202300694 Read Closing Report Here	PO Danny Rodriguez	1. Abuse of Authority - made a sexually suggestive remark to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A. Read Final Documents Here
202300947 Read Closing Report Here	PO Song Chen	1. Abuse of Authority - threatened to arrest the Victim. 2. Abuse of Authority - threatened the Victim with the use of force. 3. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with five (5) days' vacation forfeiture. Read Final Documents Here

SECTION IV: POLICE COMMISSIONER ADMINISTRATIVELY CLOSED CASES

The Police Commissioner will administratively close a case when an officer resigns, retires, or is disciplined by an internal NYPD process. Such cases require no further action from the APU. In the second quarter of 2024, the Police Commissioner administratively closed ten (10) cases.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
202100898 Closing Report Will be Available Upon Closure of all related APU Cases	PO Robert Uribe	1. Force - hit the Victim against the ground. 2. Force - used physical force against the Victim. 3. Abuse of Authority - did not obtain medical treatment for the Victim. 4. Discourtesy - spoke discourteously to the Victim.	DAO filed its own charges against the officer.
202103908 Read Closing Report Here	PO Thomas Owens	1. Abuse of Authority - entered Victim 1's commercial property. 2. Abuse of Authority - searched Victim 1's commercial property. 3. Abuse of Authority - seized Victim 1's property. 4. Abuse of Authority - entered Victim 2's commercial property. 5. Abuse of Authority - searched Victim 2's commercial property.	DAO filed its own charges against the officer.
202103908 Read Closing Report Here	LT Daniel Guida	1. Abuse of Authority - entered Victim 1's commercial property. 2. Abuse of Authority - searched Victim 1's commercial property 3. Abuse of Authority - seized Victim 1's property.	DAO filed its own charges against the officer.
202104829 Read Closing Report Here	PO Dylan Arencibia	1. Force - used a chokehold against the Victim. 2. Force - used physical force against the Victim. 3. Discourtesy - spoke discourteously to the Victim.	DAO filed its own charges against the officer.

202105747 Read Closing Report Here	PO Dennis Mcallister	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - refused to provide his name to the Victim. 3. Abuse of Authority - threatened to issue a summons to the Victim.	Officer retired.
202105864 Read Closing Report Here	PO Matthew Sichel	1. Force - used physical force against the Victim.	Officer resigned.
202107082 Read Closing Report Here	PO Thomas Gargiulo	1. Abuse of Authority - inappropriately touched the Victim. 2. Abuse of Authority - propositioned the Victim.	DAO filed its own charges against the officer.
202207878 Read Closing Report Here	PO Eroll Cherenfant	1. Force - used physical force against an individual. 2. Discourtesy - spoke discourteously to an individual.	Adjudicated at Boro Level – issued a Command Discipline B with a five (5) days' forfeiture.
202207506 Read Closing Report Here	LT Colbert Martin	1. Abuse of Authority - improperly used his body-worn camera. 2. Abuse of Authority - interfered with the Victim's use of a recording device. 3. Abuse of Authority - issued a retaliatory summons to the Victim.	Officer retired.
202300017 Closing Report Will be Available Upon Closure of all related APU Cases	PO Andrew Perez	1. Force - used physical force against the Victim. 2. Abuse of Authority - failed to obtain language interpretation services for the Victim. 3. Abuse of Authority - took law enforcement action based upon actual or perceived disability.	Officer resigned.

SECTION V: APU ADMINISTRATIVELY CLOSED CASES

The SOL is the 18-month timeframe within which a disciplinary proceeding must be commenced against an officer.⁴ Unless the case falls under the crime exception, once the SOL period elapses, a case may not proceed and will be closed without further action. In the second quarter of 2024, the APU administratively closed three (3) cases for SOL reasons.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
202003500 Read Closing Report Here	Sgt Jose Cordero	1. Force - restricted the Victim's breathing.	SOL Expired in APU
202103919 Read Closing Report Here	PO Christopher Rodriguez	1. Abuse of Authority - failed to provide individuals with a business card. 2. Abuse of Authority - frisked an individual. 3. Abuse of Authority - searched an individual. 4. Abuse of Authority - stopped an individual.	SOL Expired in APU
202204396 Read Closing Report Here	PO Michael Perez	1. Force - used physical force against Victim 1. 2. Abuse of Authority - entered Victim 1's home. 3. Abuse of Authority - threatened to arrest Victim 2.	SOL Expired in APU

⁴ Under New York Civil Service Law § 75(4), a disciplinary proceeding cannot be commenced more than 18 months after the incident, but that time limitation does not apply where the alleged misconduct, as described in the Charges and Specifications, would constitute a crime.

The service of Charges and Specifications on a MOS is considered a commencement of a disciplinary proceeding.

SECTION VI: THE APU DOCKET

The APU's docket slightly increased in the second quarter of 2024 compared to the first quarter of 2024. The sustained docket size is attributable to the increased number of Charges and Specifications recommended by the CCRB's Board pursuant to the Disciplinary Matrix and the overall increase in the number of complaints received by the Agency.

Cases in Open Docket					
Period	Start of Quarter	Received During Quarter	Closed During Quarter	End of Quarter	Growth
3 rd Quarter 2023	705	62	119	648	-8.1%
4 th Quarter 2023	648	87	82	653	0.8%
1 st Quarter 2024	653	103	76	680	4.1%
2 nd Quarter 2024	680	120	102	698	2.6%

SECTION VII: SERVICE OF RESPONDENTS

The average wait time for Respondents to be served increased between the first and second quarters of 2024.

Time to Serve Respondents			
Period	Number of Respondents Served	Average Length to Serve Respondents	Average Length to Serve Respondents (Business Days)
3 rd Quarter 2023	52	27	19
4 th Quarter 2023	56	28	20
1 st Quarter 2024	63	24	17
2 nd Quarter 2024	91	28	20

SECTION VIII: CONCURRENCE AND DISCIPLINE

The concurrence rate measures how often the Police Commissioner imposes the same (or more severe) discipline as recommended by the Board. The discipline rate measures how often the Police Commissioner imposes discipline of any kind. Certain “Not Adjudicated” case outcomes, such as when the officer left the force prior to discipline being imposed, do not factor into the concurrence or discipline rate.

Q2 2024 APU Concurrence and Discipline			
Discipline Count	61	Concurrence Count	39
No Discipline Count	28	Non-Concurrence Count	50
Not Adjudicated Count	13	Not Adjudicated Count	13
Discipline %	69%	Concurrence %	44%